

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1862

By: Roberts

AS INTRODUCED

An Act relating to law enforcement officers; creating the Oklahoma Law Enforcement Event Deconfliction Act; defining terms; directing law enforcement personnel to submit certain information to the event deconfliction system; providing list of information and type of events to be submitted; directing law enforcement to resolve event conflicts; making law enforcement personnel subject to certain penalties for failure to resolve conflicts; making information and files subject to current data retention policies of law enforcement agencies; providing confidentiality of information submitted to event deconfliction system; prohibiting the misuse of information; providing penalties; directing the Oklahoma State Bureau of Narcotics and Dangerous Drugs Control to promulgate certain rules or regulations; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 13001 of Title 74, unless there is created a duplication in numbering, reads as follows:

Sections 1 through 4 of this act shall be known and may be cited as the "Oklahoma Law Enforcement Event Deconfliction Act".

1 SECTION 2. NEW LAW A new section of law to be codified

2 in the Oklahoma Statutes as Section 13002 of Title 74, unless there
3 is created a duplication in numbering, reads as follows:

4 As used in this act:

5 1. "Conflict" means when data submitted to an event
6 deconfliction system by one law enforcement party matches data
7 submitted by one or more other law enforcement parties;

8 2. "Event" means a law enforcement action, including, but not
9 limited to, raids, undercover operations, surveillance, or the
10 execution of arrest or search warrants;

11 3. "Event deconfliction" means the process of determining when
12 law enforcement personnel are conducting an event in close proximity
13 to one another at the same time;

14 4. "Event deconfliction system" means a system designed to
15 perform event deconfliction and notify appropriate law enforcement
16 personnel that a conflict may exist; and

17 5. "Law enforcement personnel" means:

- 18 a. a part-time or full-time employee of a federal, state,
19 tribal, or local law enforcement agency, police
20 department, or sheriff's office who is responsible for
21 the prevention and detection of crime and the
22 enforcement of federal, state, tribal, or local laws,
23 or
24

1 b. a civilian part-time or full-time employee of a
2 federal, state, tribal, or local law enforcement
3 agency, police department, or sheriff's office who has
4 been approved by his or her employer to access an
5 event deconfliction system.

6 SECTION 3. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 13003 of Title 74, unless there
8 is created a duplication in numbering, reads as follows:

9 A. Law enforcement personnel shall, as soon as is practicable
10 prior to the initiation of an event and no later than one (1) hour
11 before, submit the information identified in subsection B of this
12 section to an event deconfliction system.

13 B. Information submitted to the event deconfliction system
14 shall include all information required by such system which may
15 include, but not be limited to, the following:

- 16 1. Case number;
- 17 2. Type of event;
- 18 3. Date and time of the planned event;
- 19 4. Location of the event, including the exact street address
20 and any staging areas;
- 21 5. Lead agency name;
- 22 6. Name and agency of the contact person for the event,
23 including cellular telephone number and a secondary point of contact
24 for the event;

1 7. Search radius, if not preset by the event deconfliction
2 system; and

3 8. Any other information deemed applicable to the event or
4 investigation.

5 C. Law enforcement personnel shall submit the required
6 information to the event deconfliction system about the following
7 types of events:

8 1. The service of a search or arrest warrant;

9 2. The planned arrest of a person immediately following an
10 operation or action by law enforcement personnel;

11 3. Taking delivery of contraband from an individual who is not
12 intended to be arrested;

13 4. Conducting an operation whereby law enforcement personnel
14 approaches an individual at his or her residence and requests
15 permission to search for any contraband;

16 5. Predetermined surveillance operations, whether stationary or
17 mobile;

18 6. Covert activity by law enforcement personnel, or by
19 confidential sources acting under the direction of law enforcement
20 personnel, that could cause a response from citizens or local police
21 who may reasonably believe a crime is in progress; or

22 7. Any other high-risk or specialized law enforcement
23 activities identified in state or local regulation or protocol that
24 would benefit from event deconfliction.

1 D. When law enforcement personnel receives an event conflict
2 notification, such personnel shall take all steps necessary to
3 resolve the conflict prior to the date and time of the event
4 including, but not limited to, contacting the other party identified
5 in the event notification.

6 E. Law enforcement personnel who receive an event conflict
7 notification and fail to make a good faith effort to resolve such
8 conflict may be subject to civil, administrative, or criminal
9 penalties.

10 F. The underlying information and files used by law enforcement
11 personnel to submit information to an event deconfliction system are
12 subject to the same data retention policy as all other similar
13 information held by law enforcement personnel. In addition, nothing
14 in this act shall be deemed to change or supersede any purge,
15 validation, or records retention policy established by an event
16 deconfliction system for information submitted to and held by such
17 system.

18 SECTION 4. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 13004 of Title 74, unless there
20 is created a duplication in numbering, reads as follows:

21 A. Information submitted to an event deconfliction system is
22 confidential and is not subject to the federal Freedom of
23 Information Act or the Oklahoma Open Records Act, nor is it subject
24 to civil, criminal, or administrative subpoena.

1 B. Law enforcement personnel authorized to submit information
2 to or access information held by an event deconfliction system shall
3 not:

4 1. Submit information regarding any individual or address for
5 any purpose not related to a legitimate criminal investigation; or

6 2. Access information regarding any individual or address for
7 any purpose not related to a legitimate criminal investigation.

8 C. No person who is not authorized to submit information to or
9 access information held by an event deconfliction system shall make
10 such a submission or query such system for any purpose.

11 D. Individuals who violate subsection B or C of this section
12 shall, upon conviction, be guilty of a misdemeanor punishable by a
13 fine of Five Hundred Dollars (\$500.00), or by imprisonment in the
14 county jail for a term not to exceed one (1) year, or by both such
15 fine and imprisonment.

16 SECTION 5. NEW LAW A new section of law to be codified
17 in the Oklahoma Statutes as Section 13005 of Title 74, unless there
18 is created a duplication in numbering, reads as follows:

19 The Oklahoma State Bureau of Narcotics and Dangerous Drugs
20 Control may promulgate such rules and regulations as are necessary
21 to effectuate the provisions of this act.

22 SECTION 6. This act shall become effective November 1, 2025.
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